

**Court No. - 3**

**Case :-** WRIT - C No. - 18062 of 2022

**Petitioner :-** Gaurav Beri

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Anand Prakash Srivastava

**Counsel for Respondent :-** C.S.C., Udit Chandra

**Hon'ble Surya Prakash Kesarwani, J.**

**Hon'ble Jayant Banerji, J.**

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

*i) issue a writ, order or direction in the nature of certiorari call for original records and quash the impugned provisional assessment order dated 25.05.2022 and demand notice along with inspection report and the entire proceeding undertaken in pursuance thereof in the premises no.36/40, Kabir Nagar, Durga Kund, Varanasi;*

*ii) issue a Writ, order or direction in the nature of mandamus directing and commanding the respondents to not to give effect to the impugned provisional assessment order dated 25.05.2022 and demand notice treating that impugned provisional order/demand notice have never been passed in accordance with law and petitioner is not liable to deposit the alleged amount of Rs.6,57,720/- at all;*

Learned counsel for the respondent No 2/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/her objection under ***Para 6.8 of U.P. Electricity Supply Code, 2005*** before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

**Order Date :-** 6.7.2022

T.S.